

20. **Proper number of trustees.**— We may here remark, that care should be taken not only to provide for the fitness of the trustee, but also to secure an adequate number of trustees. A single trustee, whether originally appointed such or become so by survivorship, has the absolute and unlimited control at law over the property; and should he become involved in difficulties, he is under a temptation which, notwithstanding recent penal enactments, must still be regarded as strong, to sustain his credit by resorting to a fund of which he can with certainty possess himself, and without fear of immediate detection. The fallacious hope of replacing the money before the day of payment arrives, has lulled the conscience of many, not the worst of mankind, when suffering under the pressure of poverty. There can be no objection to the appointment of a single trustee, where the trust reposed in him is merely a nominal confidence; but where the administration of the trust involves the receipt and custody of money, the safeguard of at least two trustees ought never to be dispensed with (*e*).

[*43] * **Appointment of new trustees.**— And on the death of one of the original trustees, no time should be lost in restoring the fund to its proper security by the substitution of a new trustee, a precaution, it is feared, but too frequently neglected, from motives of delicacy,—the surviving trustee being sensitive, and conceiving his honesty to be called into question, and the *cestuis que trust*, (often too ignorant of the world to see the necessity of taking precautions against fraud), being apt to suspect their legal adviser of a wish to create business at the expense of the estate.

To guard against the constant recurrence of appointments of new trustees, it is common, at least where the property is considerable, to appoint four trustees originally, for then, on the decease of the first or even a second trustee, an immediate substitution is not very material, but the safe rule is, where money is concerned, always to appoint at least three trustees, and to keep the number full. As regards stock, more than *four* trustees are scarcely ever appointed, and it is a *general*

(*e*) See *Baillie v. McKewan*, 35 Beav. 183; *Re Dickson's Estate*, 3 L. R. Eq. 345.